

Taxi and ride-hailing regulation

How the licensing regime distinguishes a traditional 小黃 from a 多元化計程車, the statute Uber was fined under, and the 2020 Grand Chamber ruling that actually ended its shutdown fight — on a jurisdictional technicality, not a ruling that Uber had been legal all along.

TAXI AND RIDE-HAILING REGULATION			
LEGAL DEFINITION OF TAXI BUSINESS 「計程車客運業：在核定區域內，以小客車出租載客為營業者。」 ^[1]	DIVERSIFIED TAXI (多元化計程車) INTRODUCED 2016-10-25, order 交通部交路字第 10550120738號 ^[1]	DIVERSIFIED-TAXI DISPATCH RESTRICTION booking only — may not street-cruise or wait at a taxi rank: 「不得巡迴攬客或於計程車招呼站排班候客」 ^[1]	STANDARD TAXI LIVERY COLOUR pure yellow, Taiwan Paint Manufacturers' Association colour card no. 1-18; diversified taxis barred from using it ^[1]
UNLICENSED OPERATION FINE RANGE NT\$100,000 to NT\$25,000,000 ^[3]	GRAND CHAMBER RULING ON UBER 2020-09-18, case 109年度大字第2號 — central Highway Bureau lacks authority to fine an unlicensed operator headquartered in a special municipality ^[4]		

Taiwan's taxi law separates a traditional 小黃 (yellow taxi) from an app-dispatched 多元化計程車 (diversified taxi) by dispatch method, not by technology. The Motor Vehicle Transportation Industry Management Rules (汽車運輸業管理規則) define a taxi business simply as renting a small passenger car to carry passengers within an approved area: 「計程車客運業：在核定區域內，以小客車出租載客為營業者。」^[1] An amendment dated 25 October 2016 added the diversified-taxi category on top of that base definition, describing it as an app-based service that matches supply and demand for booking-only dispatch.^{[1] [2]}

What actually distinguishes the two categories

The rule is dispatch method, stated directly in Article 91: a diversified taxi may only accept pre-booked rides through the platform, and may not street-cruise for passengers or wait at a taxi rank — 「不得巡迴攬客或於計程車招呼站排班候客」.^[1] Colour follows the same split. A standard taxi's replacement or new vehicle must be painted the pure yellow of Taiwan Paint Manufacturers' Association colour card no. 1-18, and the same article explicitly bars a diversified taxi from using that colour: 「但多元化計程車不得使用前開車身顏色」.^[1] A 2019 amendment, Article 103-1, extended the licensing logic to rental-car businesses partnering with information platforms: their drivers must hold taxi-driver qualifications, and vehicles cannot be booked for less than an hour or hailed on the street.^[2]

The Uber fight, and how it actually ended

Uber's Taiwan service launched officially on 31 July 2013.^[5] Regulators treated it as an unlicensed taxi operation, and by early 2017 had issued dozens of citations; a single 2 February 2017 order alone carried a NT\$231 million fine.^[5] The Highway Act's penalty provision for unlicensed operation sets a fine range of NT\$100,000 to NT\$25,000,000 per violation, a range fixed by a January 2017 amendment.^[3] Uber suspended and restarted its Taiwan service more than once through this period, eventually shifting to a rental-car-partnership model that Article 103-1 was written to formalize.^[5] ^[2] Uber itself stated in October 2019 that it would not form its own diversified-taxi fleet, instead acting as a platform for existing licensed 多元計程車 operators.^[5]

The dispute's actual legal resolution is narrower than "Uber was ruled legal." On 18 September 2020, the Supreme Administrative Court's Grand Chamber ruled on case 109年度大字第2號, brought by 交通部公路總局 (the central Highway Bureau) against 台灣宇博數位服務股份有限公司 (Taiwan Uber Digital Services Co., Ltd.).^[4] The court's own account is a jurisdictional holding, not a finding that Uber's operating model was lawful: the central Highway Bureau has no authority to fine or order the closure of an unlicensed taxi operator whose head office sits in a special municipality (直轄市) — that power belongs to the municipal government, not the national regulator.^[4] Reported totals for how much of Uber's accumulated fines this unwound vary sharply across secondary sources, from a single NT\$20 million/215-notice docket tied to this specific case up to a NT\$1.77 billion/196-case figure covering everything the Highway Bureau reportedly withdrew afterward; this page does not resolve which figure is correct, since no source explains how the two totals relate.

What remains TBC

The original 1990/1991 order mandating yellow taxi colour, the taxi-driver professional-registration regulation's own text (only reached here via a police-department restatement), and primary confirmation of specific platforms' (LINE TAXI, Taiwan Taxi) diversified-taxi permit dates are all TBC, each searched and not found at a primary source during this research.

Specifications

Uber's official Taiwan launch

2013-07-31 [5]

References

4 of 5 sources on this page are primary — published by the operator, the builder or government.

- 1 **Motor Vehicle Transportation Industry Management Rules, Article 2, 91** [<https://law.moj.gov.tw/LawClass/LawAll.aspx?pcode=K0040003>]
汽車運輸業管理規則 第2條、第91條
PRIMARY 全國法規資料庫 (National Laws & Regulations Database, Ministry of Justice)
accessed 2026-08-29
The statute text. Article 2 defines 計程車客運業 and the diversified-taxi service (多元化計程車客運服務) as app-based booking-only dispatch. Article 91 restricts diversified taxis to booking only, bars them from street-cruising or rank-waiting, and requires standard taxis to use pure-yellow livery (Taiwan Paint Manufacturers' Association colour card no. 1-18) while barring diversified taxis from that same colour.
- 2 **Legislative history, Motor Vehicle Transportation Industry Management Rules** [<https://laws.gov.taipei/Law/LawSearch/LawInformation/FL012445>]
PRIMARY 臺北市法規查詢系統 (Taipei City Government legal database) accessed 2026-08-29
Confirms the diversified-taxi provisions were added by order 交通部交路字第10550120738號 dated 25 October 2016 (民國105年10月25日), amending Articles 2, 4, 91 and adding Article 11-1; and that Article 103-1 (rental-car platform partners must use taxi-qualified drivers) was added by order 交通部交路字第10850075501號 dated 6 June 2019.
- 3 **Highway Act, Article 77** [<https://law.moj.gov.tw/LawClass/LawAll.aspx?pcode=K0040001>]
公路法 第77條
PRIMARY 全國法規資料庫 (National Laws & Regulations Database, Ministry of Justice)
accessed 2026-08-29
「未依本法申請核准，而經營汽車或電車運輸業者，得依其違反情節輕重，處新臺幣十萬元以上二千五百萬元以下罰鍰」 — unlicensed operation of a motor or electric vehicle transport business fined NT\$100,000 to NT\$25,000,000. This range was set by the 4 January 2017 amendment.
- 4 **Grand Chamber ruling, case 109年度大字第2號** [<https://judicial.gov.tw/tw/cp-1888-287772-4d6f8-1.html>]
PRIMARY 司法院 (Judicial Yuan) accessed 2026-08-29
The court's own press release on its 18 September 2020 ruling: 「就公司主事務所所在直轄市，未經依民國106年1月4日修正前公路法第37條第1項第3款規定申請核准，而擅自經營計程車客運業者，交通部公路總局無依同法第77條第2項規定對該公司予以裁處罰鍰並勒令停業之權限。」 Names the parties as 交通部公路總局 v. 台灣宇博數位服務股份有限公司 (Taiwan Uber Digital Services Co., Ltd.).
- 5 **Uber Taiwan operating timeline** [<https://www.bnext.com.tw/article/59299>]
SECONDARY 數位時代 (BusinessNext) accessed 2026-08-29

Secondary timeline account: trial launch 7 May 2013, official UberBLACK launch 31 July 2013; the 2 February 2017 shutdown-order fine of NT\$231 million against 48 cumulative citations; and an Uber statement of 1 October 2019 saying it would not form its own diversified-taxi fleet but assist existing 多元計程車 operators as a platform.

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Station names, codes and sequence from TDX Transport Data eXchange, Ministry of Transportation and Communications, operators TRTC, NTMC, TYMC, and TMRT. Government open data. Retrieved 2026-08-24; source last updated 2016-11-23. The 12 Sanying station records absent from TDX are sourced directly to New Taipei Metro and government publications on their pages. Provenance.